

25TRCV00574 25TRCV00574

County: los-angeles

Division: Civil Law and Motion

Department: 5

Hearing date: 2026-07-28

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Case Number: 25TRCV00574 Hearing Date: July 28, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department 5

DACIL OCHOA ;

Plaintiff,

vs.

CENSEP, INC. , et al.;

Defendants.

Case No.:

25TRCV00574

Hearing Date:

July 28, 2026

Time:

8:30 a.m.

[tentative] Order RE:

(1) defendant BIJAN POULDAR'S MOTION FOR PROTECTIVE ORDER

(2) DEFENDANT BIJAN POULDAR'S REQUEST FOR MONETARY SANCTIONS

(3) PLAINTIFF Dacil Ochoa'S request for monetary sanctions

MOVING PARTY: Defendant, Bijan Pouldar

RESPONDING PARTY: Plaintiff, Dacil Ochoa

(1) Defendant Bijan Pouldar's Motion for Protective Order is DENIED pursuant to Code of Civil Procedure sections 2019.030 and 2030.090.

(2) Defendant Bijan Pouldar's Request for Monetary Sanctions is DENIED pursuant to Code of Civil Procedure sections 2023.010, 2023.030, and 2030.090.

(3) Plaintiff Dacil Ochoa's Request for Monetary Sanctions is GRANTED in the reduced amount of \$1,500.00 pursuant to Code of Civil Procedure section 2030.090, subdivision (d).

The Court considers the moving papers filed on May 15, 2026, the opposition brief filed on July 1, 2026, and the reply brief filed on July 8, 2026.

BACKGROUND

Factual Background

On February 21, 2025, plaintiff Dacil Ochoa ("Plaintiff") filed the Complaint against defendants CENSEP, Inc., WASHSEP, Inc., Chevron Products, Co., Bijan Pouldar, and DOES 1 through 100. The Complaint includes two causes of action: (1) General Negligence and (2) Premises Liability.

On June 20, 2025, Plaintiff dismissed Chevron Products, Co., without prejudice.

On April 2, 2026, Plaintiff served Pouldar with Special Interrogatories, Set One. (Declaration of David Y. Hua ("Hua Decl."), ¶ 5, Exhs. A-B.) On the same day, Pouldar's counsel asserted that, "With no allegations against Def. Bijan Pouldar personally, there is no particularized need for Def. Bijan Pouldar, in his personal capacity, to respond to discovery regarding Defendant Censep's alleged conduct, and Plaintiff cannot show how such discovery is relevant or reasonably calculated to reveal admissible evidence. This is a clear abuse of the discovery process meant only to oppress, annoy, and cause undue expenses and possible monetary harm against Def. Pouldar in his personal capacity." (Hua Decl., ¶ 6, Exh. B.) Furthermore, Pouldar's counsel stated, "We will file a Motion for Protective Order with Request for Sanctions if you do not withdraw Special Interrogatories Set 1 to Defendant Bijan Pouldar by end of day Monday, 4/6/26." (Hua Decl., ¶ 6, Exh. B.)

In response, Plaintiff's counsel replied within thirty minutes on April 2, 2026, asserting that they would not withdraw the special interrogatories, as they are "relevant to the issues of individual liability, as well as the scope of his personal

involvement, management, and control over the subject premises.” (Hua Decl., ¶ 7, Exh. B.) Plaintiff’s counsel also proposed to meet and confer the following day. (Hua Decl., ¶ 7, Exh. B.)

The next day, Pouldar’s counsel responded, “No need for a follow-up phone call, there is nothing further to discuss. Your email clearly shows that there are no issues to address relating to Mr. Pouldar’s personal liability. We will proceed with the Motion for Protective Order and seek sanctions.” (Hua Decl., Exh. B.)

On April 20, 2026, Plaintiff dismissed WASHSEP, Inc., without prejudice.

Procedural Background

On May 15, 2026, Pouldar filed the motion. On July 1, 2026, Plaintiff filed an opposition brief. On July 8, 2026, Pouldar filed a reply brief.

LEGAL STANDARD

“The court shall restrict the frequency or extent of use of a discovery method provided in Section 2019.010 if it determines either of the following: ¶ (1) The discovery sought is unreasonably cumulative or duplicative, or is obtainable from some other source that is more convenient, less burdensome, or less expensive. ¶ (2) The selected method of discovery is unduly burdensome or expensive, taking into account the needs of the case, the amount in controversy, and the importance of the issues at stake in the litigation.” (Code Civ. Proc., § 2019.030, subd. (a).) “The court may make these determinations pursuant to a motion for a protective order by a party or other affected person. This motion shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2019.030, subd. (b).)

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2019.030, subd. (c).)

Pursuant to Code of Civil Procedure section 2030.090, “[w]hen interrogatories have been propounded, the responding party, and any other party or affected natural person or organization may promptly move for a protective order. This motion shall be accompanied by a meet and confer declaration under Section 2016.040. ¶ (b) The court, for good cause shown, may make any order that justice requires to protect any party or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. This protective order may include, but is not limited to, one or more of the following directions: ¶ (1) That the set of interrogatories, or particular interrogatories in the set, need not be answered. ¶ (2) That, contrary to the representations made in a declaration submitted under Section 2030.050, the number of specially prepared interrogatories is unwarranted. ¶ (3) That the time specified in Section 2030.260 to respond to the set of interrogatories, or to particular interrogatories in the set, be extended. ¶ (4) That the response be made only on specified terms and conditions. ¶ (5) That the method of discovery be an oral deposition instead of interrogatories to a party. ¶ (6) That a trade secret or other confidential research, development, or commercial information not be disclosed or be disclosed only in a certain way. ¶ (7) That some or all of the answers to interrogatories be sealed and thereafter opened only on order of the court.” (Code Civ. Proc., § 2030.090, subds. (a)-(b).)

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.090, subd. (c).)

Under Code of Civil Procedure section 2023.030, subdivision (a), “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable

expenses, including attorney's fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2023.030, subd. (a).) "Misuses of the discovery process include ... (a) Persisting, over objection and without substantial justification, in an attempt to obtain information or materials that are outside the scope of permissible discovery. ¶ (b) Using a discovery method in a manner that does not comply with its specified procedures. ¶ (c) Employing a discovery method in a manner or to an extent that causes unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. ... (h) Making or opposing, unsuccessfully and without substantial justification, a motion to compel or to limit discovery." (Code Civ. Proc., § 2023.010, subds. (a)-(c), (h).)

"The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." (Cal. Rules of Court, rule 3.1348(a).)

MEET AND CONFER REQUIREMENT

Pouldar was required to meet and confer with Plaintiff before filing this motion. (Code Civ. Proc., §§ 2019.030, subd. (b), 2030.090, subd. (a).) Code of Civil Procedure section 2016.040 states that a meet and confer declaration "in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (Code Civ. Proc., § 2016.040.) "The parties must present to each other the merits of their respective positions with the same candor, specificity and support during informal negotiations as during the briefing of discovery motions. Only after all the cards have been laid on the table, and a party has meaningfully assessed the relative strengths and weaknesses of its position in light of all available information, can there be a 'sincere' effort to resolve the matter." (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1293-1294, quoting Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1435.)

On April 2, 2026, Plaintiff served Pouldar with Special Interrogatories, Set One. (Declaration of David Y. Hua ("Hua Decl."), ¶ 5, Exhs. A-B.) On the same day, Pouldar's counsel asserted that, "With no allegations against Def. Bijan Pouldar personally, there is no particularized need for Def. Bijan Pouldar, in his personal capacity, to respond to discovery regarding Defendant Censep's alleged conduct, and Plaintiff cannot show how such discovery is relevant or reasonably calculated to reveal admissible evidence. This is a clear abuse of the discovery process meant only to oppress, annoy, and cause undue expenses and possible monetary harm against Def. Pouldar in his personal capacity." (Hua Decl., ¶ 6, Exh. B.) Furthermore, Pouldar's counsel stated, "We will file a Motion for Protective Order with Request for Sanctions if you do not withdraw Special Interrogatories Set 1 to Defendant Bijan Pouldar by end of day Monday, 4/6/26." (Hua Decl., ¶ 6, Exh. B.)

In response, Plaintiff's counsel replied within thirty minutes on April 2, 2026, asserting that they would not withdraw the special interrogatories, as they are "relevant to the issues of individual liability, as well as the scope of his personal involvement, management, and control over the subject premises." (Hua Decl., ¶ 7, Exh. B.) Plaintiff's counsel also proposed to meet and confer the following day. (Hua Decl., ¶ 7, Exh. B.)

The next day, Pouldar's counsel responded, "No need for a follow-up phone call, there is nothing further to discuss. Your email clearly shows that there are no issues to address relating to Mr. Pouldar's personal liability. We will proceed with the Motion for Protective Order and seek sanctions." (Hua Decl., Exh. B.)

The Court concludes that Pouldar did not adequately participate in the meet-and-confer process. Pouldar's counsel exhibited no intent to discuss the appropriateness of serving special interrogatories on Pouldar, given their assertion that Plaintiff did not make allegations against Pouldar in his personal capacity. Instead, Pouldar presented Plaintiff with two alternatives: either to withdraw the special interrogatories without further discussion or to proceed with filing a motion to compel.

In light of the parties' failure to meet and confer, the Court DENIES Pouldar's motion and the associated request for sanctions.

Plaintiff's Request for Monetary Sanctions

Plaintiff requests a total of \$2,000.00 in sanctions to compensate for attorney's fees incurred in opposing the motion. (Motion, pp. 7:11-8:7; Declaration of Theodore H. Ravan ("Ravan Decl."), ¶ 12.) This request is made pursuant to Code of Civil Procedure section 2030.090, subdivision (d). (Motion, p. 7:13-18.)

The request is supported by a declaration from Plaintiff's counsel, Theodore H. Ravan. In the declaration, Ravan states that their hourly rate is \$250.00 and that they devoted 4.0 hours to reviewing the motion and an additional 2.0 hours to drafting the opposition brief. (Ravan Decl., ¶ 12.) Furthermore, Ravan anticipates that they will require an additional 2.0 hours for preparation and attendance at the hearing. (Ravan Decl., ¶ 12.)

In light of the Court's decision to deny the motion, along with its determination that the imposition of sanctions is not unjust and that Pouldar acted without substantial justification, the Court GRANTS Plaintiff's requests for sanctions against Pouldar. However, the Court finds the requested time is excessive, given that the motion is straightforward and should not require 4.0 hours to review. Consequently, the Court GRANTS Plaintiff's request for sanctions but reduces the amount to \$1,500.00, which reflects a total of 6.0 hours of work.

DISCUSSION

Pouldar moves for a protective order seeking to relieve him of his obligation to respond to Plaintiff's twenty-five Special Interrogatories, Set One, on the grounds that "Plaintiff fails to state any cause of action against Defendant Pouldar, individually, because there are no 'alter-ego' allegations as required." (Motion, p. 4:17-19.) He asserts that this justification should absolve him of his responsibility to respond. However, the Court has previously rejected Pouldar's claim that Plaintiff has not sufficiently stated a cause of action against him in its ruling on his motion for judgment on the pleadings dated May 21, 2026. (May 21, 2026 Minute Order, pp. 4-6.) Consequently, Pouldar shifts his argument in his reply brief.

In his reply, Pouldar argues, "Not only has Plaintiff failed to allege alter ego liability in the Complaint, but even if she had, where discovery responses served on Plaintiff now establishes that Defendant Pouldar has zero managerial responsibilities at Defendant Censep, Inc., 'does not and did not supervise, train, or manage the day-to-day job duties of its employees, and had nothing to do with any decisions made regarding any repair, inspection, or maintenance of Censep Inc's bathroom,' further inquiry in Plaintiff's Special Interrogatories simply would not lead to the discovery of admissible evidence. Any responses, therefore, are burdensome, expensive and/or intrusive and this Court should limit such as per Code of Civil Procedure § 2017.020." (Reply, p. 4:12-20.) Pouldar maintains that the information provided supports his assertion that "the Special Interrogatories simply would not lead to the discovery of admissible evidence." (Reply, p. 4:6-7.)

To the extent that Pouldar argues that this information proves there is no claim to assert against him, the Court cannot agree without a legal analysis confirming this assertion. Furthermore, the Court disagrees with Pouldar's claim that this response is sufficient to relieve him of his obligation to answer any special interrogatories. Pouldar provides no supporting case law or statutory authority indicating that a party may evade such obligations by disavowing involvement in other discovery responses.

Accordingly, the Court DENIES Pouldar's motion and the accompanying request for monetary sanctions.

Plaintiff's Request for Monetary Sanctions

Plaintiff requests a total of \$2,000.00 in sanctions to compensate for attorney's fees incurred in opposing the motion. (Motion, pp. 7:11-8:7; Declaration of Theodore H. Ravan ("Ravan Decl."), ¶ 12.) This request is made pursuant to Code of Civil Procedure section 2030.090, subdivision (d). (Motion, p. 7:13-18.)

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In light of the Court's decision to deny the motion, along with its determination that the imposition of sanctions is not unjust and that Pouldar acted without substantial justification, the Court GRANTS Plaintiff's requests for sanctions against Pouldar. However, the Court finds the requested time is excessive, given that the motion is straightforward and should not require 4.0 hours to review. Consequently, the Court GRANTS Plaintiff's request for sanctions but reduces the amount to \$1,500.00, which reflects a total of 6.0 hours of work.

ORDERS

- 1) Defendant Bijan Pouldar's Motion for Protective Order is DENIED.
- 2) Defendant Bijan Pouldar's Request for Monetary Sanctions is DENIED.
- 3) Plaintiff Dacil Ochoa's Request for Monetary Sanctions is GRANTED in the reduced amount of \$1,500.00.
- 4) Defendant Bijan Pouldar shall pay Plaintiff's counsel \$1,500.00 by August 13, 2026.
- 5) Pouldar is ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: July 28, 2026

Tamara Hall

Judge of the Superior Court